

Court No. - 21

Case :- WRIT - C No. - 3466 of 2023

Petitioner :- Mohd Ismail

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sanjay Kumar Pandey, Umakant Chaudhary

Counsel for Respondent :- C.S.C., Chandra Shekhar Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Counsel for the petitioner submits that the petitioner had deposited the entire amount due against him and still the recovery is being pressed.

Sri C.S. Singh, learned counsel for the respondent Electricity Department is granted time to obtain instructions.

List as fresh on 7.2.2023.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.2.2023

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Hon'ble Syed Qamar Hasan Rizvi, J.

The petitioner has challenged the recovery certificate dated 28.1.2021 issued by the respondent no. 2 for recovery of electricity dues in a case of alleged theft of electricity and for a mandamus directing the respondent no. 4 to decide the representation of the petitioner dated 3.9.2021.

Sri Chandra Shekhar Singh, learned counsel appearing on behalf of the respondent electricity department states that the impugned recovery certificate has been withdrawn and that the respondents will pass a fresh order after affording opportunity of hearing to the petitioner. The communication sent in this behalf by respondent no. 4 to respondent no. 2 dated 23.1.2023 has been placed before us for perusal.

Having regard to the above, we dispose of the instant petition with liberty to the respondent electricity department to pass a fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

Order Date :- 7.2.2023

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(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)